

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

16. GURINDER SINGH V. JATINDER KAUR

25FL1246

Respondent filed a Request for Order (RFO) along with an Order Shortening Time (OST) on June 3, 2026, and an ex parte application for emergency orders. Petitioner filed a Responsive Declaration to the ex parte request on June 4, 2026. On June 5, 2026, the court denied the ex parte request. The court granted the OST and set the RFO for a hearing on June 25, 2026, at 1:30 PM. The court directed Respondent to serve Petitioner by June 5, 2026, and directed Petitioner to file a Responsive Declaration on or before June 19, 2026. Proof of Service shows Petitioner was personally served on June 5th.

Respondent is requesting authorization to travel to Canada with the minors to attend a family wedding. Respondent is seeking authorization to travel from July 21st to July 28th. Additionally, Respondent is requesting Petitioner provide the minors' passports. It is unclear from Respondent's RFO if there is a request for custody orders, as the parties' continue to cohabitate.

Petitioner filed a Responsive Declaration on June 22, 2026. It was served on June 19, 2026. This is late filed, as the court had directed the Responsive Declaration be filed on or before June 19, 2026. However, the court notes June 19th was a court holiday, and therefore, it has read and considered the declaration. The court notes, the requests made in Petitioner's Responsive Declaration exceed the scope of the RFO. Those requests are denied.

The court has read and considered the filings as outlined above. The court grants Respondent's request to travel with the minors to Canada for the dates proposed. Respondent shall provide Petitioner with a full itinerary including flight information, lodging details, and contact information. Petitioner shall make every effort to locate the minor's passport. If the passport cannot be located, parties shall work together to obtain an emergency replacement passport. If Petitioner refuses to cooperate in signing the necessary documents to obtain the replacement passport, the court authorizes the clerk of the court to act as an elisor and sign on Petitioner's behalf.

As to the request for the court to make custody orders, the court finds that request to be premature as the parties continue to cohabitate. Therefore, the request for custody orders is denied. Parties continue to share joint legal and physical custody of the minors and neither party has a right to withhold the minors from the other.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however,

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this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: THE COURT GRANTS RESPONDENT'S REQUEST TO TRAVEL WITH THE MINORS TO CANADA FOR THE DATES PROPOSED. RESPONDENT SHALL PROVIDE PETITIONER WITH A FULL ITINERARY INCLUDING FLIGHT INFORMATION, LODGING DETAILS, AND CONTACT INFORMATION. PETITIONER SHALL MAKE EVERY EFFORT TO LOCATE THE MINOR'S PASSPORT. IF THE PASSPORT CANNOT BE LOCATED, PARTIES SHALL WORK TOGETHER TO OBTAIN AN EMERGENCY REPLACEMENT PASSPORT. IF PETITIONER REFUSES TO COOPERATE IN SIGNING THE NECESSARY DOCUMENTS TO OBTAIN THE REPLACEMENT PASSPORT, THE COURT AUTHORIZES THE CLERK OF THE COURT TO ACT AS AN ELISOR AND SIGN ON PETITIONER'S BEHALF.

AS TO THE REQUEST FOR THE COURT TO MAKE CUSTODY ORDERS, THE COURT FINDS THAT REQUEST TO BE PREMATURE AS THE PARTIES CONTINUE TO COHABITATE. THEREFORE, THE REQUEST FOR CUSTODY ORDERS IS DENIED. PARTIES CONTINUE TO SHARE JOINT LEGAL AND PHYSICAL CUSTODY OF THE MINORS AND NEITHER PARTY HAS A RIGHT TO WITHHOLD THE MINORS FROM THE OTHER.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.